Post

Andrew Fleischman
@ASFleischman

Today, at oral argument, I learned that a prosecutor submitted a proposed order that included AI generated hallucinations, and the trial court signed that order.

When asked, the prosecutor said that the trial court had added the hallucinations. /1

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Andrew Fleischman @ASFleischman · 4h
This did not appear to be true, because the prosecutor had those same hallucinations in her motion for new trial brief.

I often don't check opponents cites if they don't seem to directly contradict the law I'm relying on, or to cite only general propositions. /2

3 4 297 16K

Andrew Fleischman @ASFleischman · 4h
But I think I've learned that now, with generative AI, I need to check cites even for not especially relevant propositions of law to ensure they were not hallucinated.

Let that be a lesson to the rest of you. /3

11 11 348 17K

Andrew Fleischman @ASFleischman · 4h
Here's a link to the argument where this happened: Payne v. State

gasupreme.us/oral-arguments...

4 4 176 16K

Andrew Fleischman @ASFleischman · 2h
Rough

> **The Comm Center** @commcenterpod · 5h
> State of Georgia's attorney from the AG's office in Hannah Payne's Supreme Court oral argument.

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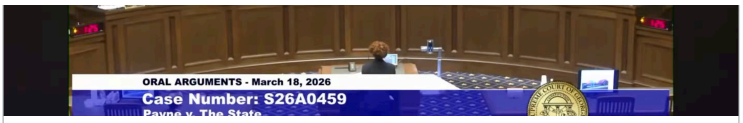

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15 7 113 14K

Bodhizattva @Bodhizattva68 · 2h
Hallucinations are a MUCH smaller problem than AI misrepresenting the holdings of the cases it cites.

4 24 4.6K

Wilfred Relmar @alphaenu · 4h

> **Wilfred Relmar** @alphaenu · Mar 15
> Replying to @ASFleischman
> Switch to Claude Code and build a skill that you iteratively improve on session-by-session to audit opposing council's submissions.
>
> The skill would be a checklist that essentially does what you do when

3 5 7.3K

CuminCoria @cumincoria · 3h
Lawyers who do this should be immediately disbarred.

2 107 7.7K

Madlaw @madlaw1071 · 4h
Unless using a legal specific AI like Westlaw, Lexis or Fastcase, there is a substantial risk of fake cases, bad cites and phony holdings. For $300 a year I guarantee I wont have problems. There's no excuse for a lawyer to get nailed on this shit.

3 44 5.2K

Sean N. @dsean · 3m
I see you're quoted by ABC, but it's unclear if this is your case. Did you catch it during briefing? Or did you get the case after?

21

Literally a Doctor @thevadge22 · 3h
the tech bros loudly continue to insist that lawyers will soon be replaced by this brilliant technology. wonder if the prosecutor will face an discipline for this? judges aren't taking this kind of thing lightly but prosecutors rarely face any consequences for unethical conduct

1 21 4.5K

Dave Walker @Barkley333 · 2h
What a nightmare for her, being called out by the Chief Justice during oral argument. I can't imagine citing a case in briefing that I have not even read. And what about the trial court's Staff Attorney?

4 1.6K

Tim @BoyDadFarmer · 4h
Everyone on here was talking about you. I'll have to look up the video. See

you doing that work!

10 5.1K

homarus @a00003344 · 4h

I don’t understand how this keeps happening. Even if you use AI you can just submit it to Westlaw analysis and it will flag all the made up shit.

1 13 2.8K

Legal Phil @Legal_Fil · 1h

Madness. Not understanding the dangers of relying on AI is bad enough, but to then (seemingly) lie to the Sup. Ct. of GA?

I don't see how this isn't grounds for sanction (although I also won't hold my breath).

1 11 1.1K

m983678 @m9836785 · 1h

That was at GA SCt OA?!!!?

1 1K

yenuka @SShticklach · 1h

why not just provide a generic order what do you gain by adding citations

286

Brad Ford @Digetydog · 2h

What do we do now the Westlaw is using AI to point us to the correct cases? I don’t trust it like I did before,

1 1.1K

Charly @zplerhop · 3h

Jesus Christ. That's unacceptable on her part.

4 2.3K